

CHAPTER – 17

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Name	Tenure	
	From	To
Dr. Rajendra Prasad	1950	1962
Dr. S. Radhakrishnan	1962	1967
Dr. Zakir Hussain	1967	1969
V.V. Giri (Vice-President) #	1969	1969
Justice M. Hidayatullah*	1969	1969
V.V. Giri	1969	1974
F. Ali Ahmed	1974	1977
B.D. Jatti#	1977	1977
N. Sanjiva Reddy	1977	1982
Gaini Jail Singh	1982	1987
R. Venkataraman	1987	1992
Dr. S.D. Sharma	1992	1997
K.R. Narayanan	1997	2002
Dr. A.P.J. Abdul Kalam	2002	2007
Smt. Pratibha Patil	2007	2012
Pranab Mukherjee	2012	2017
Ram Nath Kovind	2017	2022
Smt. Droupadi Murmu	2022	Till Date

#Acting; *First Chief-Justice to be appointed President.

VICE-PRESIDENTS OF INDIA

Name	Tenure	
	From	To
Dr. Sarvepalli Radhakrishnan	1952	1962
Dr. Zakir Hssain	1962	1967
V.V. Giri	1967	1969
Bal Swaroop Pathka	1969	1974
Dr. M. Jatti	1974	1979
Justice Mohd. Hidayatullah	1979	1984
S. Venkataraman	1984	1987
Dr. shankar Dayal Sharma	1987	1992
K.R. Narayanan	1992	1977
Krishan Kant	1997	2002
Bhairon Singh Sekhawat	2002	2007
Hamid Ansari	2007	2017
Venkaiah Naidu	2017	2022
Jagdeep Dhankhar	2022	Till Date

PRIME MINISTERS OF INDIA

Name	Tenure	
	From	To
Jawahar Lal Nehru	1947	1964
Gulzari Lal Nanda	1964	1964
Lal Bahadur Shastri	1964	1966
Gulzari Lal Nanda	1966	1966
Indira Gandhi	1966	1977
Morarji Desai	1977	1979
Charan Singh	1979	1979
Indira Gandhi	1980	1984
Rajiv Gandhi	1984	1989
V.P. Singh	1989	1990
Chandra Shekhar	1990	1991
P.V. Narasimha Rao	1991	1996
Atal Bihari Vajpayee	1996	1996
H.D. Deve Gowda	1996	1997
I.K. Gujral	1997	1998
Atal Bihari Vajpayee	1998	1999
Atal Bihari Vajpayee	1999	2004
Dr. Manmohan Singh	2004	2009
Dr. Manmohan Singh	2009	2014
Narendra Damodardas Modi	2014	Till Date

TABLE OF PRECEDENCE (GOVT. OF INDIA)

- President
- Vice President
- Prime Minister
- Governors of States within their respective States
- Former Presidents
- Deputy Prime Minister
- Chief Justice of India
 - a. Speaker of Lok Sabha
- Cabinet Ministers of the Union
 - a. Chief Minister of States within their respective States
 - b. Dy. Chairman, Planning Commission
 - c. Former Prime Ministers
 - d. Leaders of opposition in Rajya Sabha and Lok Sabha
- Holders of Bharat Ratna decoration

IMPORTANT CONSTITUTIONAL AMENDMENTS

- ❖ **First Amendment 1951** : Added Ninth Schedule.

- ❖ **Seventh Amendment 1956** : Necessitated on account of reorganisation of States on a linguistic basis.
- ❖ **Eighth Amendment 1959**: Extended special provisions for reservations of seats for SCs, STs and Anglo-Indians in Lok Sabha and Leg. Assemblies for a period of 10 years from 1960 to 1970.
- ❖ The Ninth Amendment 1960 Gave effect to transfer certain territories to Pakistan following the 1958 Indo-Pak agreement.
- ❖ **The Tenth Amendment 1961** : Incorporated Dadra & Nagar Haveli as a UT.
- ❖ Twelfth Amendment 1962 Incorporated Goa, Daman & Diu as a UT.
- ❖ **Thirteenth Amendment 1962** : Created Nagaland as a State.
- ❖ **S. Fourteenth Amendment 1963** : Pondicherry, Karaikal, Mahe and Yanam, the former French territories were included in the I schedule as UT of Pondicherry.

- ❖ **Eighteenth Amendment 1966** : Reorganised Punjab into Punjab, Haryana and UT of Chandigarh.
- ❖ **Twenty first Amendment 1967** : Included Sindhi as the Fifteenth Regional language.
- ❖ **Twenty second Amendment 1969** : Created a sub-state of Meghalaya within Assam.
- ❖ **Twenty third Amendment 1969**: Extended the reservation of seats for SC/ST and nomination of Anglo-Indians for a further period of 10 years (till 1980).
- ❖ **Twenty sixth Amendment 1971**: Abolished the titles and special privileges of former rulers of princely states.
- ❖ **Twenty seventh Amendment 1971** : Established Manipur and Tripura as States and Mizoram and Arunachal Pradesh as UTs.
- ❖ **Thirty first Amendment 1973** : Increased the elective strength of LS from 525 to 545. The upper limit of representatives of States went up from 500 to 525.
- ❖ **Thirty sixth Amendments 1975** : Made Sikkim a State.
- ❖ **Thirty eighth Amendment 1975** : Provided that the President can make a declaration of emergency, and the promulgation of ordinances by the President, Governors and the Administrative Heads of UTs would be final and could not be challenged in any court. It also authorised the President to declare different kinds of emergencies.
- ❖ **Thirty ninth Amendment 1975**: Placed beyond challenge in courts, the election to Parliament of a person holding the office of PM or Speaker and election of the President and Prime Minister.
- ❖ **Forty second Amendment 1976** : Provided supremacy of Parliament and gave primacy to Directive Principles over Fundamental Rights. It also added 10 Fundamental Duties. New words- Socialist, Secular and Unity and Integrity of the Nation, were added in the preamble.
- ❖ **Forty fourth Amendment 1978** : The Right to Property was deleted from Part III. Article 352 was amended to provide 'Armed Rebellion' as one of the circumstances for declaration of emergency.
- ❖ **Forty fifth Amendment 1985** Extended reservation for SC/ST by another 10 years (till 1990).
- ❖ **Fifty second Amendment 1985** : Added the Tenth Schedule (regarding anti-defection).
- ❖ **Fifty third Amendment 1986** : Mizoram was made a state.
- ❖ **Fifty fifth Amendment 1986**: Conferred statehood to Arunachal Pradesh.
- ❖ **Fifty sixth Amendment 1987** : Hindi version of the Constitution of India was accepted for all purposes. The UT of Goa, Damon and Diu was divided and Goa was made a State. Daman and Diu remained as a UT.
- ❖ **Sixty first Amendment 1989**: Reduced the voting age from 21 to 18 years for the LS as well as Assemblies.
- ❖ **Sixty first Amendment 1989** : Also extended reservation of seats for SC/ST till 2000 AD.
- ❖ **Seventy first Amendment 1992** : Konkani, Manipuri and Nepali were included in the VIII Schedule.
- ❖ **Seventy third Amendment 1993** : (Panchayati Raj Bill) Provided among other things Gram Sabha in Villages, constitution of panchayats at the village and other levels, direct elections to all seats in panchayats and reservation of seats for the SC and ST and fixing of tenure of 5 years for panchayats.
- ❖ **Seventy fourth Amendment 1993** : (Nagarpalika Bill) Provides for, among other things, constitution of three types of municipalities, reservation of seats in every municipality for the SC and ST, women and the backward classes.
- ❖ **Eighty second Amendment 2000** : Reinstated the provision of reservation of SC and STs in matters related to promotion. Besides, the qualifying marks for passing an examination for them has also been lowered.
- ❖ **Eighty fourth Amendment 2001** : Extended freeze on Lok Sabha and State Assembly seats till 2026.
- ❖ **Eighty sixth Amendment 2002** : Makes education a fundamental right for children in the age group of 6-14 years.
- ❖ **Eighty seventh Amendment 2003** : Made the 2001 census the basis for delimitation of constituencies of the Lower House of Parliament (Lok Sabha) and State assemblies (Vidhan Sabhas).

- ❖ **Ninety first Amendment 2003** : Amended the Anti-Defection Law and also made a provision that the number of ministers in the Central & State Govts. cannot be more than 15% of the strength of Lok Sabha & respected Vidhan Sabha.
- ❖ **Ninety second Amendment 2003**: Bodo, Maithili, Santhali and Dogri added into the VIII Schedule.
- ❖ **Ninety third Amendment 2005**: To reserve seats for socially and educationally backward classes, besides the Scheduled Castes and the Scheduled Tribes, in private unaided institutions other than those run by minorities.
- ❖ **Ninety fourth Amendments 2006**: To provide for a Minister of Tribal Welfare in newly created Jharkhand and Chhattisgarh.

Ninety-Seventh Amendment Act, 2011: Gave a constitutional status and protection to co-operative societies. In this context, it made the following three changes in the constitution:

1. It made the right to form co-operative societies a fundamental right.
2. It included a new Directive Principle of State Policy on promotion of co-operative societies.
3. It added a new Part IX-B in the constitution which is entitled as "The Co-operative Societies".

Ninety-Ninth Amendment Act, 2014: Replaced the collegium system of appointing judges to the Supreme Court and High Courts with a new body called the National Judicial Appointments Commission (NJAC). However, in 2015, the Supreme Court has declared this amendment act as unconstitutional and void. Consequently, the earlier collegium system became operative again.

One Hundredth Amendment Act, 2015: Gave effect to the acquiring of certain territories by India and transfer of certain other territories to Bangladesh (through exchange of enclaves and retention of adverse possessions) in pursuance of the Land Boundary Agreement of 1974 and its Protocol of 2011.

One Hundred and First Amendment Act, 2016: Paved the way for the introduction of the goods and services tax (GST) regime in the country.

One Hundred and Second Amendment Act, 2018: Conferred a constitutional status on the National

Commission for Backward Classes which was set-up in 1993 by an Act of the Parliament.

One Hundred and Third Amendment Act, 2019: Empowered the state to make any special provision for the advancement of any economically weaker sections of citizens.

One Hundred and Fourth Amendment Act, 2019: amended Article 334 to cease the reservation of Anglo-Indians in the Lok Sabha and extended the deadline for the cessation of seats for SCs and STs in the Lok Sabha and states assemblies from Seventy years to Eighty.

One Hundred and Fourth Amendment Act, 2021: Restored state governments' power to prepare the Socially and Educationally Backward Classes (SEBC) list.

LISTS:

Subjects of Union, State and Concurrent Lists

The division of powers between Union and State is notified through three kinds of the list mentioned in the seventh schedule:

- Union List – List I
- State List – List II
- Concurrent List – List III

- The **union list** details the subjects on which Parliament may make laws while the **state list** details those under the purview of state legislatures.
- The **concurrent list** on the other hand has subjects in which both Parliament and state legislatures have jurisdiction. However **the Constitution provides federal supremacy to Parliament on concurrent list items in case of a conflict.**

At Present, 97 items are mentioned in List-I like defence, banking, foreign affairs, currency, atomic energy, insurance, communication, interstate trade and commerce, census, audit and so on.; 61 in List-II (originally 66 subjects) like public order, police, public health and sanitation, agriculture prisons, local government, fisheries, markets, theaters, gambling and so on., and 52 in List-III subjects like criminal law and procedure, civil procedure, marriage and divorce, population control and family planning, electricity, labour welfare, economic and social planning, drugs, newspapers, books and printing press, and others.